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Accelerating the Adoption and Use of Artificial Intelligence as Part of Clinical Care

Artificial Intelligence has the potential to revolutionize both healthcare and technology. However, in order to create an environment that promotes innovation while protecting legal, ethical and privacy guidelines, we must develop and implement a balanced approach.

1. Support for innovation while protecting IP

Although encouraging responsible innovation in Artificial Intelligence for the benefit of consumers, it is essential to protect the intellectual property and trade secrets that fuel innovation, thereby preventing the transparency framework from inadvertently undermining proprietary innovation. Typically, AI models, training data, and related materials contain substantial trade secrets and intellectual property that fuel innovation. These disclosure requirements that are broad and prescriptive pose a risk by exposing data that could potentially undermine the investment in AI innovation.

2. Regulatory clarity and predictability

Predictability of regulations is essential to ensure the broad adoption of AI in the field of healthcare. However, the current system introduces unnecessary barriers in terms of overlapping jurisdictions, unclear and uneven application. The HHS must align its regulations and develop a common system that defines which AI applications are governed by existing medical device regulations and new regulatory approaches. The HHS must ensure that there are regular, predictable updates to regulations that specifically address AI capabilities, rather than the current ad-hoc approach that introduces planning uncertainty. Finally, the HHS must establish a program with a safe harbor provision that will enable healthcare providers to adopt new AI applications while generating real-world evidence, without the risk of retroactive enforcement.

3. Data governance and patient trust

In any discussion about Artificial Intelligence in the field of healthcare, the confidentiality of patients' information is non-negotiable. At the forefront is the need to comply with the Health Insurance Portability and Accountability Act (HIPAA), which is the gold standard for protecting

private healthcare information. It is crucial to ensure that all AI-enabled tools (such as applications, etc.) are fully compliant with HIPAA regulations. Failure to fully comply with the regulations will result in putting the patients at risk of having their most private information compromised, which may result in lack of trust to share information, ultimately undermining the potential of AI to improve healthcare outcomes. The regulations should be integrated into AI governance structures not only to ensure confidentiality, but to ensure that there are strict legal guidelines for innovators and healthcare institutions to innovate within.

4. Validation, testing, and post-deployment monitoring

In the healthcare sector, there is a great demand for standardized frameworks of AI validation, supported by HHS, that take into account new systems of evaluations that are not restricted to the traditional systems of clinical trials. HHS must offer financial support for the development of benchmarking datasets that are open-source and clinical AI performance metrics so that comparison with other tools and vendors can be made in an open and transparent way. Post-deployment surveillance is also essential due to the tendency of AI to degrade in performance. Because of this, HHS must offer facilities and guidelines in real-world settings. There must also be reporting systems for AI performance issues similar to the current systems for adverse event reporting, to create feedback systems for continuous improvement in the sector.

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